

Act Relating to Reconstruction of Earthquake Affected Structures, 2015

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Act Relating to the Reconstruction of Earthquake-Affected Structures, 2072

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Amending Act

1. Some Nepal Acts Amendment Act, 2075 2075.11.19

Preamble: Whereas, it is expedient to make legal provision regarding the establishment of an empowered National Reconstruction Authority to complete the construction work of structures damaged by the devastating earthquake of Baisakh 12, 2072 and subsequent aftershocks in a sustainable, sturdy and planned manner as soon as possible, and to provide for the resettlement and relocation of persons and families displaced by the earthquake, thereby promoting national interest and providing social justice;

Therefore, the Legislature-Parliament, pursuant to Sub-article (1) of Article 296 of the Constitution of Nepal, has enacted this Act. 1. Short Title and Commencement: (1) This Act may be cited as the "Act Relating to the Reconstruction of Earthquake-Affected Structures, 2072".

(2) This Act shall come into force immediately.

(3) This Act shall remain in force as long as the term of the Authority subsists. 2. Definition: Unless the subject or context otherwise requires, in this Act, -

(a) "Executive Committee" means the Executive Committee pursuant to Section 9.

(b) "Prescribed or as prescribed" means prescribed or as prescribed in the Rules framed under this Act.

(c) "Directing Committee" means the Directing Committee pursuant to Section 6.

(d) "Reconstruction" means economic, social or physical development, new construction and restoration work related to the damage caused by the earthquake, carried out in a sustainable, sturdy and planned manner.

(e) "Council" means the National Reconstruction Advisory Council pursuant to Section 5.

(f) "Chief Executive Officer" means the Chief Executive Officer appointed pursuant to Section 11.

(g) "Authority" means the National Reconstruction Authority established pursuant to Section 3.

(h) "Earthquake" means the earthquake that occurred on Baisakh 12, 2072 and the subsequent aftershocks as well.

(i) "Earthquake-Affected Area" means any area designated by the Government of Nepal by publishing a notice in the Nepal Gazette, stating that, due to widespread human or physical damage caused by the earthquake, plans or programs of a special nature need to be implemented for the resettlement of displaced persons and the reconstruction of physical, social and archaeological structures.

(j) "Secretary" means the Secretary of the Authority pursuant to Section 13. 3. Establishment of the Authority:

(1) A National Reconstruction Authority is established for the reconstruction of the damage caused by the earthquake.

(2) The working area of the Authority shall be as specified by the Government of Nepal by publishing a notice in the Nepal Gazette.

(3) The term of the Authority shall be five years.

4. Functions, Duties and Powers of the Authority: (1) The functions, duties and powers of the Authority shall be as follows:-

- (a) To ascertain or cause to be ascertained the damage caused by the earthquake,
 - (b) To recommend to the Government of Nepal for the designation of earthquake-affected areas,
 - (c) To determine the priority of reconstruction,
 - (d) To approve programs including policies, plans, budgets and schedules necessary for reconstruction,
 - (e) To approve projects related to reconstruction,
 - (f) To carry out or cause to be carried out work related to reconstruction,
 - (g) If land needs to be acquired for the implementation of plans or programs including reconstruction, integrated settlement development and integrated housing development, to acquire land by following the procedure under this Act or to assign responsibility for such work to any body or office-bearer,
 - (h) To prepare necessary standards for integrated settlement development, integrated housing development (house pooling), restoration and relocation, identify suitable locations, formulate plans thereof and implement or cause to be implemented,
 - (i) To stop any work done or about to be done by any person for the implementation of projects or programs related to reconstruction or integrated settlement development, or to order the concerned person to do such work only according to the prescribed quality, standards or methods,
 - (j) If it is necessary to remove a physical structure of any person for reconstruction, to order the concerned body to remove it after providing compensation according to the prevailing law,
 - (k) To prepare and implement or cause to be implemented programs related to human resource development necessary for education, health, agriculture, industry, employment and reconstruction and restoration,
 - (l) To make available necessary budget and other resources to the body responsible for reconstruction,
 - (m) To mobilize non-governmental organizations, private sector or communities as required for reconstruction,
 - (n) To carry out or cause to be carried out reconstruction work by selecting appropriate methods in cooperation with governmental, private or non-governmental sectors, communities or foreign associations or organizations based in Nepal, as necessary,
 - (o) To coordinate among various bodies to make reconstruction-related work effective,
 - (p) To develop or cause to develop the capacity of bodies involved in reconstruction work,
 - (q) To mobilize financial resources for reconstruction and make arrangements for their effective utilization,
 - (r) To conduct or cause to be conducted a technical inspection of damaged or risky physical structures and order the concerned person to remove or demolish such physical structure, and if the structure is not removed or demolished accordingly, to remove or demolish such structure itself and order the concerned body or office-bearer immediately to recover the actual cost incurred in such removal or demolition from the concerned owner as government dues,
- Provided that, if the owner of such structure is unable to remove or demolish it himself due to economic poverty as prescribed, the Authority may give direction to any body or office-bearer to remove or demolish such structure at government expense.
- (s) To inspect, examine and monitor, as necessary, the work and actions carried out in accordance with the direction of the Authority,
 - (t) To carry out or cause to be carried out other work related to reconstruction in the earthquake-affected area.

(2) Notwithstanding anything contained in the prevailing law, for the purpose of completing or causing to be

completed the reconstruction work to be accomplished under Sub-section (1) in an expeditious manner, the provisions relating to land acquisition, land registration, trust (guthi), public procurement, forest, ancient monument conservation and environmental impact assessment for reconstruction carried out in earthquake-affected areas shall be according to the procedure approved by the Government of Nepal.

(3) For the purpose of Sub-section (2), the Government of Nepal shall formulate and implement separate procedures.

Provided that procedures shall not be framed in a manner contrary to the fundamental principles of the Public Procurement Act.

(4) While framing procedures or doing or causing to do any work under this section, it shall be done in a manner that does not adversely affect environmental balance, healthy competition, transparency and accountability.

(5) The procedure pursuant to Sub-section (3) shall be published in the Nepal Gazette. 5. Formation of the National Reconstruction Advisory Council: (1) There shall be a National Reconstruction Advisory Council for the purpose of advising the Directing Committee in relation to preparing policies and plans concerning reconstruction.

(2) The formation of the Council shall be as follows:-

(a) Prime Minister ? Chairperson

(b) Amended by Some Nepal Acts Amendment Act, 2075. Leader of the main opposition party in the House of Representatives ? Vice-Chairperson

(c) Ministers designated by the Prime Minister ? Member

(d) Former Prime Ministers ? Member

(e) Amended by Some Nepal Acts Amendment Act, 2075. Heads of political parties represented in the House of Representatives ? Member

(f) From earthquake-affected districts,

Amended by Some Nepal Acts Amendment Act, 2075. Fourteen persons nominated by the Advisory Council from among the members of parliament representing the House of Representatives from each district, ensuring representation based on the principle of inclusiveness ? Member

(g) Chief Executive Officer ? Member

(h) Vice-Chairperson of the National Planning Commission ? Member

(i) Chief Secretary of the Government of Nepal ? Member

(j) Chief of Army Staff, Nepali Army ? Member

(k) Governor, Nepal Rastra Bank ? Member

(l) Secretaries of the Government of Nepal designated by the Prime Minister ? Member

(m) Inspector General of Police, Nepal Police ? Member

(n) Inspector General of Armed Police Force, Armed Police Force, Nepal ? Member

(o) Five persons, including at least two women, nominated by the Government of Nepal from among experts from universities, non-governmental organizations, civil society or the private sector, ensuring representation ? Member

(p) Secretary ? Member-Secretary

(3) The meeting of the Council shall be held at least once every six months on the date, time and place designated by the Chairperson.

(4) Any other expert or office-bearer may be invited to the meeting of the Council as necessary.

(5) Other procedures relating to the meeting of the Council shall be as determined by the Council itself. 6.

Directing Committee: (1) There shall be a Directing Committee to function as the central body of the

Authority. (2) The formation of the Directing Committee shall be as follows:- (a) Prime Minister ? Chairperson Amended by Some Nepal Acts Amendment Act, 2075.(b) Leader of the main opposition party in the House of Representatives or the Deputy Leader designated by him/her ? Vice-Chairperson (c) Two ministers designated by the Prime Minister ? Member (d) Chief Executive Officer ? Member (e) Vice-Chairperson of the National Planning Commission ? Member (f) Chief Secretary of the Government of Nepal ? Member (g) Three persons, nominated by the Government of Nepal on the basis of the principle of inclusiveness, from among experts who have obtained a master's degree from a university recognized by the Government of Nepal in the subject of infrastructure development and engineering, law, economics, management, geography, geology, archaeology or development planning, and who have gained at least ten years of experience in the relevant field including national and international projects ? Member (h) Secretary ? Member-Secretary (3) Members pursuant to Clause (g) of Sub-section (2) shall remain in office for such period as desired by the Government of Nepal. If they need to be removed from such office for any reason, they shall be given an opportunity to submit a defense before such removal. (4) The facilities of members pursuant to Clause (g) of Sub-section (2) shall be as prescribed by the Government of Nepal. 7.

Provisions Relating to Meetings of the Directing Committee: (1) The meeting of the Directing Committee shall be held as necessary on the date, time and place designated by the Chairperson. (2) The Secretary shall make available the notice of the meeting and the subjects for discussion to the members generally at least twenty-four hours before the time of such meeting. (3) If more than fifty percent of the total number of members of the Directing Committee are present, the meeting of the Directing Committee shall be deemed to have constituted a quorum. (4) The meeting of the Directing Committee shall be presided over by the Chairperson. (5) The decision of the meeting of the Directing Committee shall be made by a majority of the members present, and in case of a tie, the person presiding over the meeting shall cast the deciding vote. (6) The Directing Committee may invite any office-bearer of the Government of Nepal, any body or representative of associations or organizations, or an expert to the meeting as necessary. (7) Decisions of the meeting of the Directing Committee shall be certified by the Secretary. (8) Other procedures relating to the meeting of the Directing Committee shall be as determined by the Directing Committee itself. 8. Functions, Duties and Powers of the Directing Committee: The functions, duties and powers of the Directing Committee shall be as follows:- (a) To approve policies and plans relating to reconstruction prepared by the Executive Committee, (b) To give directions to the Executive Committee to make reconstruction-related work systematic and effective, (c) To approve the budget of the Authority, (d) To approve the organizational structure of the Authority. 9.

Executive Committee: (1) There shall be an Executive Committee to exercise and fulfill or cause to be fulfilled the functions, duties and powers assigned to the Authority under this Act. (2) The formation of the Executive Committee shall be as follows:- (a) Chief Executive Officer ? Chairperson (b) Secretary of the Office of the Prime Minister and Council of Ministers designated by the Chief Secretary of the Government of Nepal ? Member (c) Four persons, nominated by the Government of Nepal on the basis of the principle of inclusiveness, from among experts who have obtained a master's degree from a university recognized by the Government of Nepal in the subject of infrastructure development and engineering, law, economics, management, geography, geology, archaeology or development planning, and who have gained at least ten years of experience in the relevant field including national and international projects ? Member (d) Secretary ? Member-Secretary (3) Members pursuant to Clause (c) of Sub-section (2) shall remain in office for such period as desired by the Government of Nepal. If they need to be removed from such office for any reason, they shall be given an opportunity to submit a defense before such removal. (4) The remuneration and facilities of members pursuant to Clause (c) of Sub-section (2) shall be as prescribed by the Government of

Nepal. 10. Provisions Relating to Meetings of the Executive Committee: (1) The meeting of the Executive Committee shall be held as necessary on the date, time and place designated by the Chairperson. (2) The Secretary shall make available the notice of the meeting and the subjects for discussion to the members generally at least twenty-four hours before the time of such meeting. (3) If more than fifty percent of the total number of members of the Executive Committee are present, the meeting of the Executive Committee shall be deemed to have constituted a quorum. (4) The meeting of the Executive Committee shall be presided over by the Chairperson. (5) The decision of the meeting of the Executive Committee shall be made by a majority of the members present, and in case of a tie, the Chairperson shall cast the deciding vote. (6) The Executive Committee may invite any office-bearer of the Government of Nepal, any body or representative of associations or organizations, or an expert to the meeting as necessary. (7) Decisions of the meeting of the Executive Committee shall be certified by the Secretary. (8) Other procedures relating to the meeting of the Executive Committee shall be as determined by the Executive Committee itself. 11.

Provision Relating to Chief Executive Officer: (1) There shall be a Chief Executive Officer who works full time as the executive chief of the Authority. (2) The Government of Nepal shall appoint the Chief Executive Officer from among persons who have obtained at least a master's degree in administration, management, economics, engineering or development planning from a university recognized by the Government of Nepal and who have gained at least fifteen years of experience in the relevant field. (3) The term of office of the Chief Executive Officer shall be five years from the date of appointment. The Government of Nepal may extend the term of office of the Chief Executive Officer for a maximum of one year as necessary. (4) Notwithstanding anything contained in Sub-section (3), if the work of the Chief Executive Officer is not satisfactory, the Government of Nepal may remove him/her from office at any time. Provided that, before such removal, he/she shall be given an opportunity to submit a defense. (5) If the office of the Chief Executive Officer becomes vacant for any reason, the Government of Nepal shall appoint another person to such office for the remaining period from among persons possessing the qualifications pursuant to Sub-section (2). (6) The remuneration, other terms of service and facilities of the Chief Executive Officer shall be as specified by the Government of Nepal by publishing a notice in the Nepal Gazette. 12. Functions, Duties and Powers of the Chief Executive Officer: The functions, duties and powers of the Chief Executive Officer shall be as follows:- (a) To cause to prepare a draft of policies and plans relating to reconstruction of the Authority and submit it to the Directing Committee for approval, (b) To maintain coordination among various bodies in relation to the work and activities of the Authority, (c) To implement or cause to implement the directions and decisions of the Council and the Directing Committee, (d) To enter any person's house or land during reconstruction or settlement development, to prohibit anyone's entry into such place, or to remove any obstruction if there is any, (e) To take action, up to removal, if an employee appointed in the Authority does not fulfill their responsibility, (f) To carry out or cause to carry out other reconstruction-related work as prescribed. 13.

Secretary of the Authority: (1) The Government of Nepal shall designate one person from among officers of the gazetted special class of the civil service to serve as the Secretary of the Authority. (2) The functions, duties and powers of the Secretary shall be as follows:- (a) To act as the administrative chief of the Authority, (b) To purchase or cause to purchase goods and services required for the reconstruction work to be done by the Authority, (c) To collect information and details required by the Authority, (d) To implement or cause to implement the decisions and directions of the Executive Committee, (e) To prepare proposals on subjects requiring decision by the Executive Committee and submit them to the meeting of the Executive Committee, (f) To monitor and inspect or cause to monitor and inspect the programs conducted as per the direction of the Executive Committee, (g) To perform or cause to perform other functions as prescribed. 14. Provision

Relating to Employees: (1) Employees required by the Authority shall be provided by the Government of Nepal. (2) If the Government of Nepal is unable to provide the necessary employees pursuant to Sub-section (1), the Chief Executive Officer may appoint employees at various levels on contract as prescribed. (3) The service, terms and conditions and facilities of employees appointed on contract pursuant to Sub-section (2) shall be as specified in the contract agreement. (4) The Executive Committee may avail the services of experts as required for the work of the Authority. (5) The functions, duties, powers, term and facilities of the expert providing services pursuant to Sub-section (4) shall be as specified by the Executive Committee. (6) The Executive Committee may provide additional facilities to employees provided by the Government of Nepal. 15.

Reconstruction Fund: (1) There shall be a separate Reconstruction Fund for the Authority. (2) The Fund pursuant to Sub-section (1) shall consist of the following amounts:- (a) Amounts received from the Government of Nepal, (b) Amounts received from the Prime Minister's Natural Disaster Relief Fund, (c) Amounts received from any association, organization or individual, (d) Amounts received in cash or in-kind aid or from programs from foreign individuals, governments or international associations or organizations, (e) Amounts received from any other source. (3) Before receiving amounts pursuant to Clause (d) of Sub-section (2), the Authority shall obtain approval from the Ministry of Finance in coordination with the Ministry of Foreign Affairs. (4) The operation of the Fund pursuant to Sub-section (1) shall be as specified by the Executive Committee. (5) Notwithstanding anything contained in the prevailing law, the amount in the Reconstruction Fund under this section shall not be frozen. (6) The amount of the Fund pursuant to Sub-section (1) shall be spent only for reconstruction-related work. (7) The Authority shall prepare a report on the status of annual transactions and other accounts of the Fund pursuant to Sub-section (1) and submit it to the Government of Nepal. 16. Provision of Amount for Administrative Expenses: The Government of Nepal shall provide the necessary amount annually for the administrative expenses of the Authority. 17. May Establish Offices: (1) The Authority may establish offices as necessary to carry out or cause to carry out supervision, monitoring and coordination of reconstruction-related work or such work. (2) The functions, duties and powers of the offices established pursuant to Sub-section (1) shall be as specified by the Authority. 18. Organizational Structure and Posts of the Authority: The posts and job descriptions of the employees of the Authority shall be as specified by the Executive Committee, remaining within the organizational structure and budget approved by the Directing Committee. 19. Accounts and Audit: (1) The accounts of income and expenditure of the Authority shall be maintained according to the format adopted by the Government of Nepal. (2) The internal audit of the Fund of the Authority shall be conducted by the Office of the Comptroller and Auditor General and the final audit shall be conducted by the Auditor General. 20. Development Assistance Coordination and Facilitation Committee: To make reconstruction-related programs operated through development assistance effective and transparent and to monitor or cause to monitor such programs, the Council shall constitute a Development Assistance Coordination and Facilitation Committee with a maximum of eleven members, under the coordination of the Chief Executive Officer, including representation from national and international development partners and civil society as well. 21.

May Give Directions: (1) The Authority may give necessary directions to any public body or public servant while exercising its functions, duties and powers under this Act. (2) It shall be the duty of the concerned body or public servant to comply with the direction pursuant to Sub-section (1). 22. Sending in Writing for Action: (1) If any public servant fails to comply with a direction given by the Authority under this Act, he/she shall be deemed to have violated the prevailing law relating to his/her service and conditions. (2) The Authority may send a written communication to the concerned body for action against a public servant who fails to comply with a direction given by the Authority. (3) If a written communication for action is received against the head

of any body or a public servant pursuant to Sub-section (2), the competent authority shall take action against him/her within one month and inform the Authority thereof. (4) If any public servant fails to perform work under the authority delegated from the Authority pursuant to this Act, the Authority may conduct an inquiry regarding the work and action done by such public servant. (5) While conducting an inquiry pursuant to Sub-section (4), the Authority may call for the relevant file and also question the concerned person. (6) If, upon conducting an inquiry pursuant to Sub-section (4), any public servant is found to have done unlawful work or action, the Authority shall send a written communication to the concerned body for action against such public servant according to the prevailing law. 23. To Hold Public Hearing: The Authority shall hold a public hearing at least once every six months to make its work and activities effective and transparent. 24. Report to be Made Public: (1) The Authority shall, on a quarterly basis, make public a report through appropriate means including the work and activities carried out by it and the expenses incurred for administrative and reconstruction purposes. (2) The Authority shall submit an annual report of the work and activities performed by it to the Government of Nepal within three months of the end of the fiscal year. (3) The report received pursuant to Sub-section (2) shall be submitted by the Government of Nepal to Amended by Some Nepal Acts Amendment Act, 2075.the House of Representatives. 25.

District Coordination Committee: (1) There shall be a District Coordination Committee in each district to coordinate the work and activities carried out by the Authority in the earthquake-affected area. (2) The District Coordination Committee pursuant to Sub-section (1) shall consist of the member of parliament representing the Amended by Some Nepal Acts Amendment Act, 2075.Federal Parliament from the concerned district, the Chief District Officer and the Local Development Officer of the concerned district. (3) The coordinator of the District Coordination Committee shall be from among the members of parliament pursuant to Sub-section (2) on a rotational basis every six months according to the alphabetical order of Nepali names. (4) The functions, duties and powers of the District Coordination Committee pursuant to Sub-section (1) shall be as follows:- (a) To coordinate the work and activities carried out by the Authority, (b) To monitor the work and activities carried out by the Authority, (c) To review the work and activities carried out by the Authority, (d) To recommend action if any office-bearer or employee stationed in the district, related to the work of the Authority, does any work contrary to this Act, (e) To perform other functions as prescribed. (5) For the purpose of Sub-section (4), the District Coordination Committee may invite office-bearers of any body stationed in the district, women and social workers to the committee as necessary. 26.

Provision Relating to Appeal: (1) A party aggrieved by a decision or order made by the Authority while exercising the functions, duties and powers mentioned in this Act may appeal to the Appeal Committee pursuant to Sub-section (2). (2) To process and settle appeals filed pursuant to Sub-section (1), the Government of Nepal shall form an Appeal Committee as follows:- (a) A judge designated by the Government of Nepal on the recommendation of the Judicial Council from among the sitting judges of the High Court ? Chairperson (b) Two persons appointed by the Government of Nepal, ensuring representation, from among persons who have obtained at least a master's degree from a recognized university in the subject of infrastructure, engineering, law, economics, management, economic or social development, archaeology, public procurement or social development and who have at least fifteen years of work experience in the relevant field ? Member (3) The facilities of the Chairperson and Members of the Appeal Committee shall be equivalent to those of a judge of the High Court. (4) A member appointed pursuant to Clause (b) of Sub-section (2) may be removed from office at any time by the Government of Nepal if an inquiry committee formed by the Government of Nepal recommends removal on the grounds of his/her bad conduct or lack of competence to fulfill the positional responsibility. Provided that before such removal, he/she shall be given an opportunity to submit a defense. (5) Employees required by the Appeal Committee shall be provided by the

Government of Nepal. (6) While processing and settling appeals under this section, the Appeal Committee shall exercise the same powers as those of a High Court under the prevailing law. (7) While processing and settling appeals under this section, the Appeal Committee shall adopt the procedure pursuant to the Summary Procedure Act, 2028. (8) The decision or order made by the Appeal Committee shall be final. (9) The term of the Appeal Committee shall remain up to one year from the date of dissolution of the Authority. The appeals and related case files remaining to be settled by the Appeal Committee within its specified term shall be transferred to the High Court having jurisdiction over the location of the central office of the Authority.

27. To be According to this Act: Matters written in this Act shall be according to this Act, and matters not covered by this Act shall be according to other prevailing laws.

28. Delegation of Powers: The Authority may delegate some of the powers conferred upon it, as necessary, to the Chief Executive Officer, member, Secretary or any body or officer of the Government of Nepal.

29.